

Nevertheless, the Court awards only reasonable compensatory fees incurred. The Court limits recovery for each missed hearing to a maximum of one hour and where counsel claims less than one hour for a hearing, the Court awards only the time actually claimed. The Court also awards the .7 hours of meet and confer time claimed. Finally, the Court awards a total of 3 hours for counsel's work opposing the 473 motion and attending the hearing. The total awarded time is 7.6 hours at \$265 per hour, for a compensatory fee award of \$2,014.00.

Disposition

The July 23, 2025 dismissal is set aside for the reasons stated in the January 22, 2026 order. Defendants request for attorney fees is granted in part. Plaintiffs' counsel is ordered to pay Defendants \$2,014.00 within 30 days of this order.

2. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
MOTION TO STRIKE PRAYER FROM 2ND AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Before the Court is Defendants Nelson Pools, Inc. and Bryant Harris' Motion to Strike Prayer from Second Amended Complaint. Defendants move to strike the request for "statutory damages, including treble damages where allowed," from the Prayer.

For the following reasons, Defendants' Motion is **granted** as outlined below.

Factual and Procedural Background

In June 2020, Plaintiffs entered into a contract with Defendant Nelson Pools, Inc. for construction of a swimming pool, hot tub, and concrete decking at Plaintiffs' residential property. Plaintiffs allege numerous problems with the design and performance of the work by Defendants.

Plaintiffs filed their initial Complaint on December 2, 2022. That Complaint alleged eight causes of action: (1) slander of title; (2) breach of contract; (3) negligence; (4) unfair business practices (Bus. & Prof. Code § 17200 et seq.); (5) strict liability – design defect; (6) fraud in the inducement; (7) intentional infliction of emotional distress; and (8) negligent infliction of emotional distress.

A First Amended Complaint was filed on April 25, 2023, removing several causes of action. The operative Second Amended Complaint was filed on May 19, 2025. The SAC alleges four causes of action: (1) breach of contract; (2) negligence; (3) strict liability – design defect; and (4) fraud. Among other relief, the SAC requests and award of "statutory damages, including treble damages where allowed". (Prayer at B.)

Standard of Review

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. ("CCP") § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it

deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 [“matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

Analysis

As noted by Defendants, the SAC does not identify any statute that either Defendant is alleged to have violated. As outlined above, the SAC contains four causes of action – each of which is based on a violation of the common law. There are no statutory claims.

Plaintiffs make several arguments in opposition. First, they note that the original complaint “incorporated by reference into the SAC” contains a cause of action under the UCL – Business and Professions Code section 17200 et seq. Plaintiffs fail to indicate where in the SAC this reference is. The Court’s review of the SAC fails to find any reference to the original complaint being ‘incorporated by reference.’

Even if it were, an “‘amended’ complaint supersedes all prior complaints. . . . The original ceases to ‘perform any function as a pleading.’ [Citation omitted.]” (*Lee v. Bank of America* (1994) 27 Cal.App.4th 197, 215 [quoting *Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884].) “The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” (*State Compensation Ins. Fund v. Superior Court* (2010) 184 Cal.App.4th 1124, 1131.) As such, the original complaint cannot form the basis for relief in the SAC.

Likewise, the arguments regarding the unlawful mechanics’ lien are without merit. Plaintiffs argue that the allegations regarding Defendants obtaining a mechanics’ lien “forms the factual basis for the cause of action for Slander of Title and serves as a prime example of the ‘unlawful business act’ targeted by the UCL.” Again, the SAC does not contain a cause of action for Slander of Title – nor for a UCL violation.

Even if the UCL were alleged, in a private action under that law “the remedies are ‘generally limited to injunctive relief and restitution.’” (*Clark v. Superior Court* (2010) 50 Cal.4th 605, 610.) “When the action is brought by public prosecutors, the recovery may also include a civil penalty of up to \$ 2,500 for each violation.” (*Ibid.*) “**Not recoverable are damages**, including punitive damages and increased or enhanced damages.” (*Ibid.* emphasis added.) As such, even a UCL claim would not support a prayer for statutory damages.

Plaintiffs’ arguments related to the fraud claim and request for exemplary damages also fail to address the request for statutory damages – which is a separate category of requested damages. The Prayer includes a request for ‘exemplary damages according to proof,’ is available as Plaintiffs have a fraud cause of action. (The Court notes that the demurrer to the fraud cause of action was sustained with leave to amend as to Defendant Harris – see line 1.) The common law fraud cause of action, however, does not support a claim for “statutory damages.”

The SAC does not contain any claims for statutory violations that would support a request for

statutory damages. Without a statutory cause of action, such damages are unavailable.

Conclusion

Based on the above, Defendants' motion to strike is **granted**.

3. 9:00 AM CASE NUMBER: C22-02577
CASE NAME: PATANISHA DAVIS PIERSON VS. BRYANT HARRIS
***HEARING ON MOTION IN RE: DEMURRER TO 2ND AMENDED COMPLAINT.**
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Bryant Harris' Demurrer to Second Amended Complaint.

Factual Allegations and Procedural Background

In June 2020, Plaintiffs entered into a contract with Defendant Nelson Pools, Inc. for construction of a swimming pool, hot tub, and concrete decking at Plaintiffs' residential property. Plaintiffs allege numerous problems with the design and performance of the work by Defendants.

Relevant to the current proceeding, Defendant Bryant Harris is alleged to have "owned, managed, and/or acted in a supervisory capacity" for Defendant Nelson Pools. (¶ 9.) He is also alleged to have had several discussions with Plaintiffs during and after the construction project, and to have designed at least part of the project. (e.g. ¶¶ 14-15, 18-19.)

Plaintiffs filed their initial complaint on December 2, 2022. The operative Second Amended Complaint was filed on May 19, 2025. The SAC alleges four causes of action: (1) breach of contract; (2) negligence; (3) strict liability – design defect; and (4) fraud. Only the second (negligence) and fourth (fraud) causes of action are asserted against moving Defendant Harris.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) A complaint must be "liberally construed" and a demurrer "overruled if any cause of action is stated by the plaintiff." (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 727.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) A demurrer lies only for defects appearing on the face of the complaint or from matters of which the court must or may take judicial notice. (CCP 430.40; *see Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A